IN THE NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH, PRAYAGRAJ

CP (CAA) No.04/ALD/2021
Connected with
CA (CAA) No.253/ALD/2021

In the matter of
The Companies Act, 2013

And

In the matter of
Section 230-Section 232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

And

In the matter of

Injectoplast Private Limited	…	Petitioner Company No. 1/ Demerged Company/ IPL

And

Moldura Tech Private Limited	…	Petitioner Company No. 2/ Resulting Company-1/MTPL

And

Autoplastcomp Private Limited	…	Petitioner Company No. 3/ Resulting Company-2/APL

And

their respective Shareholders and Creditors

Order reserved on: 21.03.2022

Order pronounced on: 06.04.2022

Coram:

Shri Rajasekhar V. K.	:	Member (Judicial)
Shri Virendra Kumar Gupta	:	Member (Technical)

Appearances (via videoconferencing):

For the Petitioner Companies	:	Mr. Rahul Agarwal, Advocate
For the Regional Director (NR), MCA	:	Mr. Kuldip Singh, Asstt OL.

—Sd—

ORDER

Per : Virendra Kumar Gupta., Member (Technical)

1. The petitioners filed the joint application/petition under Section 230-232 and other applicable provisions of the Companies Act, 2013 ("**Act**") read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016 praying for the sanctioning of the Scheme of Arrangement between Injectoplast Private Limited (Petitioner Company No. 1/ "Demerged Company"/ IPL and Moldura Tech Private Limited (Petitioner Company No. 2/ "Resulting Company-1"/MTPL) and Autoplastcomp Private Limited (Petitioner Company No. 3/ "Resulting Company-2"/APL) and their respective shareholders and creditors ("Scheme") under Section 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

2. The Demerged Company and the Resulting Companies belong to the same group of companies. The Scheme of Arrangement has been proposed on account of the following advantages and benefits:

   a) Enables focused management orientation to each of the business undertaking(s) due to individual specialization and leadership vision, which would provide greater visibility on the performance of the respective businesses;

   b) Attribution of appropriate risk and valuation to different business undertakings based on their respective risk return profile and cash flows;

   c) The management and Board of Directors of Resulting Companies would be able to chart-out independent strategies of their respective businesses to maximize value creation for the respective stakeholders; and

   d) Opportunities for strategic partnership and flexibility for fund raising capability for future growth and expansion and to create a structure geared to take advantage of growth opportunities.

—Sd—

3. Previously, the Petitioner Companies had filed Company Application No. 253/ALD/2020 under Section 230(1) read with Section 232(1) and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016 seeking to dispense the requirement of convening the separate meetings of the Equity Shareholders and Secured Creditors of the Petitioner Companies and Unsecured Creditors of the Petitioner Company No. 2 and Petitioner Company No. 3. This Tribunal, vide its order dated December 23, 2020, allowed the prayer for dispensation of meetings of Equity Shareholders and Secured Creditors of the Petitioner Companies and directed for convening the meeting of Unsecured Creditors of the Petitioner Company No. 1 as prayed in C.A. No. 253/ALD/2020, along with directions for service of notice to the statutory authorities.

4. Complying with the directions, notices along with the explanatory statement and supporting documents were issued by the Petitioner Companies to Unsecured Creditors of the Petitioner Company No. 1 through post and published in Business Standard (English) and Rashtriya Sahara (Hindi). Affidavit of Service was filed by the Chairperson on February 3, 2021. The aforesaid meeting of Unsecured Creditors of Petitioner Company No. 1 was held on February 13, 2021 and as reported by the Chairperson of the Meetings in his report filed with this Tribunal, the Scheme of Arrangement approved by 97.69% of votes including postal ballots and those present and voting.

5. On March 12, 2021, the Petitioner Companies filed the Second Motion Petition being Company Petition No. 04/ALD/2021. This Tribunal vide its order dated March 17, 2021, directed the Applicant Companies to serve notice upon the Regional Director (Northern Region), Registrar of Companies, Kanpur, Official Liquidator, Allahabad and the respective Income Tax Authorities for the Applicant Companies; and also directed to effect newspaper publication in “Business Standard” in English and “Rashtriya Sahara” in Hindi where the registered offices of the Applicant Companies are

—Sd—

situated. The Petitioner Companies complied with the directions and have filed affidavit of service.

6. In response to such notice, the Regional Director (Northern Region) and the Registrar of Companies have filed their reports, while the Income Tax authorities have not filed representations within the stipulated period, from which it is presumed they have no objection to the Scheme of Arrangement. The report of the Regional Director (Northern Region) and the Registrar of Companies raises no objection to the proposed Scheme, and does not point out any other supervening public interest against allowing the Scheme.

7. In view of no objections having been raised by the Registrar of Companies, Kanpur, and the Regional Director (Northern Region), and all the statutory compliances having been made, this Tribunal finds that the proposed Scheme of Arrangement annexed as Annexure-1 to the Company Petition is to be sanctioned. The present Petition deserves to be allowed in terms of its prayer clause. In the result, the Scheme of Arrangement annexed as Annexure-1 to the Company Petition is duly approved and sanctioned. Petitioner Companies to act upon as per terms and conditions of the sanctioned Composite Scheme of Arrangement and the same to be binding upon the share holders, secured creditors and unsecured creditors of the above-named Companies with effect from the appointed date.

8. In view of the facts stated above, the following orders are passed:-

   i) Upon the Scheme becoming effective, all properties, rights, interests against the 'Moulded Automotive Sealing Parts Business Undertaking' and 'Injection Moulded Parts Business Undertaking' of the Demerged Company/Petitioner Company-1 shall pursuant to Section 232 of the Companies Act, 2013 without any further act or deed will transfer to and vest in or be deemed to have been transferred and vested in the Resulting Company-1/ Petitioner Company -2 and Resulting Company-2/ Petitioner Company 3;

—Sd—

ii) Upon the Scheme becoming effective, all liabilities, obligations and duties of the 'Moulded Automotive Sealing Parts Business Undertaking' and 'Injection Moulded Parts Business Undertaking' of the Demerged Company/Petitioner Company-1 shall pursuant to Section 232 of the Companies Act, 2013 without any further act or deed will transfer to and vest in or be deemed to have been transferred and vested in the Resulting Company-1/ Petitioner Company -2 and Resulting Company-2/ Petitioner Company -3 respectively as per the terms of the Scheme of Arrangement;

iii) Upon the Scheme becoming effective, all the employees of the 'Moulded Automotive Sealing Parts Business Undertaking' and 'Injection Moulded Parts Business Undertaking' of the Demerged Company/ Petitioner Company -1 shall be transferred to the Resulting Company-1/ Petitioner Company -2 and Resulting Company-2/ Petitioner Company 3 respectively as provided in the Scheme of Arrangement;

iv) Upon the Scheme becoming effective, all proceedings and/or suits and/or appeals now pending by or against the 'Moulded Automotive Sealing Parts Business Undertaking' and 'Injection Moulded Parts Business Undertaking' of the Demerged Company/ Petitioner Company -1 in be continued by or against the Petitioner Company -1 as provided in the Scheme of Arrangement,

v) Upon the Scheme becoming effective and in consideration for the arrangement between Petitioner Company -1 and Petitioner Company -2 and Petitioner Company -3, Petitioner Company -2 and 3 shall, without any further act or deed, issue and allot to each equity shareholder of Petitioner Company -1 (whose names appear in the register of members as on the Record Date or to their administrators or

—Sd—

other legal representatives or the successors-in-title, as the case may be), the following equity shares:

By Petitioner Company-2

"(One) Equity Share(s) of the face value of INR 10 each of MTPL credited as fully paid-up, for every 1 (One) Equity Share(s) of Rs 10 each, fully paid up, held in IPL. ("Share Entitlement Ratio-1")"

By Petitioner Company-3

"(One) Equity Share(s) of the face value of INR 10 each of IPL credited as fully paid up, for every 1 (One) Equity Share(s) of Re 10 each, fully paid up, held in IPL (Share Entitlement Ratio-2")"

vi) Upon the Scheme becoming effective, the name of the Petitioner Company -1/Demerged Company shall be changed to "Plastica Trading Private Limited", name of the Petitioner Company -2/ "Resulting Company-1" shall be changed to "CVJ Sealings Systems Private Limited" and name of the Petitioner Company 3/ "Resulting Company-2" shall be changed to "Injectoplast Private Limited" as decided by the Board of Directors of the Petitioner Companies and subject to approval by Registrar of Companies, Uttar Pradesh at Kanpur, the relevant clause of the Memorandum of Association of the Petitioner Companies shall stand accordingly modified, changed and amended with effect from the Effective Date;

vii) Leave is granted to the Petitioner Companies to file the Schedule of Assets within three weeks from today. The Petitioner Companies are further directed to cause a certified copy of the formal order to be delivered within 30 days from the date of its receipt to the Registrar of Companies for registration in terms of Section 230-232 of the Companies Act, 2013 read with National Company Law Tribunal Rules, 2016 along with The Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

—Sd—

viii) The Applicants shall supply legible print out of the Scheme and Schedule of Assets in acceptable form to the Registry and the Registry will append such printout, after verification, to the certified copy of the order.

ix) CP (CAA) No. 04/ALD/2021 is disposed of accordingly.

9. Certified copies of this order be supplied, if applied for, subject to compliance with usual formalities.

—Sd—

Rajasekhar V K
Digitally signed by Rajasekhar V K
Date: 2022.04.06 19:31:24 +05'30'

Virendra Kumar Gupta
Member (Technical)

Rajasekhar V.K.
Member (Judicial)